CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

DECISION

Applications nos. 15270/02 and 15288/02
by Süleyman AZRAK and ASİM-SEN
against Turkey

The European Court of Human Rights (Second Section), sitting on 20 November 2007 as a Chamber composed of:

Mrs F. TULKENS, *President*,
Mr I. CABRAL BARRETO,
Mr R. TÜRMEN,
Mr M. UGREKHELIDZE,
Mr V. ZAGREBELSKY,
Mrs A. MULARONI,
Mrs D. JOČIENĖ, *judges*,
and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above applications lodged on 7 February 2002,

Having regard to the decision to examine the applications simultaneously,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the cases together.

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

THE FACTS

The first applicant, Mr Süleyman Azrak, is a Turkish national who was born in 1954 and lives in Ankara. He is the president of the second applicant, ASİM-SEN (*Askeri İşyerlerinde Görevli Sivil Kamu Çalışanları Sendikası* – the Trade Union of Civilian Public Servants Employed in Military Workplaces), a trade union with its headquarters in

Ankara. The applicants are represented before the Court by Mr F. Gümüş, Mr E. Kırmızı, Mr M. Ayhan and Mr. A. Sayılır, lawyers practising in Ankara. The Turkish Government ("the Government") did not designate an Agent for the purposes of the proceedings before the Court.

The facts of the cases, as submitted by the parties, may be summarised as follows.

On 16 November 1992 ASİM-SEN was founded.

On 1 December 1992 the Ankara governor's office filed a case with the Ankara Civil Court of First Instance, requesting the dissolution of the ASİM-SEN as domestic law did not allow public servants to form trade unions.

On 24 February 1994 the Ankara Civil Court of First Instance dismissed the case, considering that the applicant organisation was not technically a trade union.

On 12 June 1997 Article 22 of Law No. 657 on Public Servants was amended by Law No. 4275 to enable public servants to form and join trade unions.

On 13 August 2001 the Public Servants' Trade Unions Law (Law no. 4688) entered into force. According to Article 15 of this Law, civilian public servants and other public employees who work in the Ministry of Defence and in the Turkish Armed Forces, including the General Command of the Gendarmerie and the Coast Guard Command, cannot form and join trade unions.

On 30 November 2001 ASİM-SEN filed a petition with the Ankara governor's office, informing them that the trade union would hold a general congress on 15 December 2001 in Ankara.

On 13 December 2001 the deputy governor of Ankara sent a letter to the ASİM-SEN saying that such a meeting could not be held because the organisation was not allowed to have trade union functions. This decision was upheld by the domestic courts, the final decision being that the Court of Cassation, served on the applicants' lawyers on 9 March 2007.

COMPLAINTS

The applicants originally alleged that the entry into force of Law no. 4688 and the Ankara deputy governor's letter of 13 December 2001 had constituted the dissolution of ASİM-SEN and had amounted to a violation of Articles 1, 3, 5, 10, 11, and 17 of the Convention.

The applicants also invoked Articles 13 and 14 of the Convention.

THE LAW

By letter dated 9 November 2006, the Government's observations on the applicants' complaints were sent to the applicants for comment and the specification of possible claims for just satisfaction by 21 December 2006.

By letter dated 23 July 2007, sent by registered post, the applicants were notified that the period allowed for the submission of their observations had expired and that no extension of the time-limit had been requested. Their attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list where the circumstances lead to the conclusion that the applicant does not intend to pursue the matter. The applicants' representatives received this letter on 3 August 2007. However, no response has been received.

In these circumstances and having regard to Article 37 § 1 (a) of the Convention, the Court concludes that the applicants do not intend to pursue the matter. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the further examination of the cases. Accordingly, Article 29 § 3 of the Convention should no longer apply to the applications and they should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the applications out of its list of cases.

S. DOLLÉ
Registrar

F. TULKENS
President